

		(<i>Pedus Services, Inc.</i>) (1998) 67 Cal.App.4th 1253, 1255.] In this instance, Plaintiff alleges on or about August 1, 2022, Plaintiff Hernandez moved into the apartment and discovered two rats in the apartment. He reported the rats to management and they brought rat traps. (Complaint ¶15, 16.) He alleges that mold and bed bugs were reported to Defendants. (See Complaint ¶16, 22.) However, Plaintiff pleads his "concerns were ignored." (Complaint ¶22.) Plaintiff also pleads that he reported the bed bugs and mold once more (Complaint ¶26) and management sent someone to inspect the mold, however, "The personnel did not remove the mold in the wall nor change the top of the carpet in the affected areas that became damp from the water leak." (Complaint ¶27.) As to the bed bugs, the apartment was treated for bed bugs on 8/8/2023. (Complaint ¶28.) Plaintiff moved out of the apartment on 8/19/2023. Here, the length of time between the complaints and management's response is unclear. However, it appears Plaintiff suffered from the bed bugs and mold for at least a year. And while the bed bugs could have been remediated, the mold issue was not. If true, this could warrant punitive damages. Therefore, the Motion to Strike is DENIED as Item 4 above. The Case Management Conference is continued to September 17, 2026 at 1:30 p.m. <i>Defendants to give notice.</i>
109	Ally Bank vs. Carmona 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Plaintiff has filed a proof of service showing that the Summons, Complaint, and Notice of Application for Writ of Possession and Hearing were served by substituted service on May 24, 2026 after personal service could not with reasonable diligence be effected. The documents were thereafter mailed on May 28, 2026 and service was not complete until June 8, 2026, which is insufficient notice for a hearing on June 25, 2026. In light of the above, the hearing on Plaintiff's Application for Writ of Possession is CONTINUED to July 23, 2026 at 1:30 p.m. Plaintiff is ORDERED to provide Defendant with sufficient notice of the continued hearing date and file a

		proof of service no later than nine court days before the continued hearing date. <i>Moving party to give notice.</i>
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